

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 14620/08
Igor Sergeyevich BATENEV
against Russia

The European Court of Human Rights (Third Section), sitting on 9 December 2021as a Committee composed of:

Peeter Roosma, *President,*
Dmitry Dedov,
Andreas Zünd, *judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 28 January 2008,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Igor Sergeyevich Batenev, was born in 1953.

He was represented by Mr A. Rudnitskiy, a lawyer practising in Novosibirsk.

The applicant's complaints under Articles 10 and 11 of the Convention concerning the violation of his right to freedom of expression and freedom of assembly were communicated to the Russian Government ("the Government").

On 8 November 2021 the applicant's representative informed the Court that the applicant had died and that the applicant's relatives did not wish to pursue the proceedings before the Court in his stead. They asked that the case pending before the Court be closed.

THE LAW

The Court takes note of the fact that the applicant died and that his heirs do not wish to pursue the application within the meaning of Article 37 § 1 (a) of the Convention. The Court does not consider that respect for human rights as defined in the Convention and the Protocols requires the examination of

the application despite the death of the applicant. It follows that the case should be struck out of the list of cases.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 13 January 2022.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President